

Niger 2024 Human Rights Report

Executive Summary

There were negative changes in the human rights situation in Niger during the year. The National Council for Safeguarding the Homeland, a group of military officers who seized power in a 2023 coup d'état, ruled by decree while closing civic space, restricting freedoms, and prohibiting all political party activities.

Significant human rights issues included: credible reports of arbitrary or unlawful killings; disappearances; arbitrary arrest or detention; serious abuses in a conflict; serious restrictions on freedom of expression and media freedom, including unjustified arrests or prosecutions of journalists; trafficking in persons, including forced labor; and significant presence of any of the worst forms of child labor.

The government took credible steps to identify and punish officials who committed human rights abuses.

Community-based armed militias, terrorist groups, armed bandit groups, smugglers, and drug and human traffickers targeted and killed civilians, committed enforced disappearances, and inflicted cruel, inhuman, or degrading treatment or punishment. Government forces battled terrorist groups. Judicial authorities made efforts to investigate and prosecute

abuses committed by armed nonstate actors.

Section 1. Life

a. Extrajudicial Killings

There was one report the government or its agents committed numerous arbitrary or unlawful killings during the year.

In June, media reported that human rights activist and politician Alhassane Intinicar, an advisor to a former president, was arrested on the charges of “dissemination of data likely to disturb public order and undermine human dignity.” His arrest followed the publication of a statement on social media in which he accused security forces of killing nine civilians on May 28 in a village in Torodi Department, Tillaberi Region. In July, he was sentenced to one year in prison and fined \$8,000. There were no known investigations into the veracity of Intinicar’s allegations regarding the May 28 killings.

b. Coercion in Population Control

There were no reports of coerced abortion or involuntary sterilization on the part of government authorities.

c. War Crimes, Crimes against Humanity, and Evidence of Acts that May Constitute Genocide, or Conflict-Related

Abuses

Conflict violence increased in the western part of the country following the 2023 coup by the ruling National Council for the Safeguard of the Homeland (CNSP). The Islamic State of Greater Sahara increased the lethality of its attacks against civilians and government security forces, displacing local communities and rendering health care, education, and agriculture services increasingly inaccessible. Jama'at Nasr al-Islam wal Muslimin escalated its attacks on government security forces and entrenched its infiltration of communities in its western Tillaberi Region stronghold. In response, the government increased security operations against both groups. The government sponsored and upheld community peace agreements in Bani Bangou and Ouallam Departments, which sharply curbed intercommunal massacres perpetrated by local militias. Conflict violence in eastern Diffa Region included occasional improvised explosive device attacks by Boko Haram and Islamic State West Africa Province.

Section 2. Liberty

a. Freedom of the Press

The dissolved constitution and law provided for freedom of expression, including for members of the press and other media, but the government did not always respect this freedom. Authorities occasionally arrested civil

society activists whom they accused of factual inaccuracies in reporting or other offenses.

Physical Attacks, Imprisonment, and Pressure

Authorities at times arrested journalists accused of factual inaccuracies in reporting or other offenses. In April, the chief editor of the daily independent newspaper *L'Enqueteur*, Idrissa Soumana Maiga, was arrested and incarcerated in Niamey following articles critical of the CNSP, including one alleging the installation of surveillance equipment in Niamey. A magistrate court granted him provisional release in July.

Under a declared state of emergency in Diffa, Tillaberi, and Tahoua Regions, authorities prohibited media from reporting on security situations without government authorization and sometimes restricted movement within those regions. Journalists complained this impeded their ability to inform the public. Insecurity compelled many reporters to evacuate conflict regions due to safety concerns, and numerous journalists received threats from terrorist groups.

Censorship by Governments, Military, Intelligence, or Police Forces, Criminal Groups, or Armed Extremist or Rebel Groups

Media freedom deteriorated significantly during the year. The CNSP suspended some press organizations and arrested some journalists, which

resulted in an environment of self-censorship among media members. The CNSP suspended the BBC for reporting content with which the CNSP did not agree.

Due to threats from jihadist groups, some radio stations were compelled to shut down operations, while others ceased operations due to a lack of journalists or presenters because they had received terrorist threats. Journalists working in conflict zones often had limited freedom to adhere to journalistic ethics.

b. Worker Rights

Freedom of Association and Collective Bargaining

Under the CNSP, the status of the labor law was unclear at year's end. The law provided for the right of workers to form and join independent unions, conduct legal strikes, and bargain collectively. The law provided for freedom of association, but the government did not adopt implementing regulations to enforce the law. While there were no provisions that limited collective bargaining in nonessential services, provisions restricted certain categories of public servants not engaged in the administration of the government from exercising their right to collective bargaining. Children ages 14 to 15 were permitted to work (although there were limits on the hours and type of work) but were not permitted to join unions.

The law restricted the right to strike by public servants in management positions and workers in certain essential services, the scope of which was broader than that envisioned in International Labor Organization conventions. Legal restrictions usually required civil servants to report to work during a legally notified strike. There were no prohibitions on strikes in nonessential services. Workers were required to give employers at least three days' advance notice of intent to strike. The government could call for mandatory arbitration in lieu of a strike.

The law allowed unions to conduct their activities without interference from employers. The law did not specifically prohibit or penalize antiunion discrimination or require reinstatement for workers dismissed for union activity. There were limitations on the law's applicability to public service employees.

Government application of laws in the public and private sectors varied, but the laws were largely enforced in formal sectors. Penalties for violations included imprisonment and fines; these penalties were generally commensurate with those for other laws involving violations of civil rights.

Authorities generally respected freedom of association, the right to strike, and the right to collective bargaining, and workers exercised these rights. For example, market vendors held unobstructed local strikes to protest tax increases and high energy costs. Unions exercised the right to bargain collectively for wages above the legal minimum and for more favorable

working conditions.

Forced or Compulsory Labor

See the Department of State's annual *Trafficking in Persons Report* at <https://www.state.gov/trafficking-in-persons-report/>.

Acceptable Work Conditions

Wage and Hour Laws

The status of the wage and hour law was unclear. The law established a minimum wage only for salaried workers in the formal sector with fixed (contractual) terms of employment. The government set minimum wages for each class and category within the formal economy, and wages were adjusted in January. The lowest minimum wage was above the official poverty income level.

The formal economy's legal workweek was 40 hours with a minimum of one 24-hour rest period, although the Ministry of Public Function, Labor, and Employment authorized workweeks of up to 72 hours for certain occupations, including private security guards, domestic workers, and drivers. The law provided special arrangements regarding the mining and oil sectors whereby the ministry could grant waivers regarding work hours based on these two sectors' specific nature and make allowances for working larger blocks of time in exchange for increased time off. Workers

could work for two weeks beyond normal work hours, in compensation for which they were entitled to two weeks' rest. Employers were required to provide premium pay for overtime, although the law did not set a specific rate; employees of each enterprise or government agency negotiated with their employer to set the rate. The law called for a maximum eight hours of overtime per week, but this was not enforced. Penalties for wage and hour violations were less than those for similar crimes such as fraud.

Occupational Safety and Health

The law established occupational safety and health (OSH) standards that were appropriate for the main industries. It extended labor inspectors' enforcement authority regarding these standards and provided for sanctions, including a mandatory appearance before labor inspectors for resolving health and safety disputes. By law all workers could remove themselves from situations that endangered health or safety without jeopardy to their employment. Nevertheless, authorities did not effectively protect workers in such situations. Abuses of provisions governing work conditions reportedly occurred in the oil and mining sectors, including at artisanal gold mines, oil fields, and oil refineries. Groups of workers in hazardous or exploitive work conditions included mineworkers, including children, and domestic workers. In the artisanal gold mining sector, the use of cyanide posed serious health hazards for workers and surrounding communities. A significant percentage of miners worked in the informal

sector. The majority, however, were employed by large international firms; labor advocates complained these firms were not transparent regarding work conditions.

Union workers in many cases did not receive information concerning the risks posed by their jobs. The government stated the Ministry of Public Function, Labor, and Employment responded to reports of work-related accidents and required affected employees be compensated as required by law. The ministry did not release data on workplace accidents.

The government sent teams composed of staff from the ministries of Mines, Finance, Health, Environment, and Justice for visits of mining sites. The goal was to increase the collection of mining taxes, increase statistics on mining production, monitor occupational safety and health practices, and stop illegal mining.

Wage, Hour, and OSH Enforcement

The Ministry of Public Function, Labor, and Employment was responsible for enforcing labor laws but was unable to operate normally since the 2023 coup. The ministry inconsistently enforced minimum wages and workweek laws and only in the regulated formal economy. The number of inspectors responsible for enforcing the labor code was not sufficient to enforce compliance, and monetary sanctions were not commensurate with those for similar crimes. Inspectors had the authority to make unannounced

inspections but did not have the authority to initiate sanctions. Monetary sanctions were not commensurate with those for similar crimes. Penalties were not applied against violators.

Approximately 90 percent of workers were in the informal sector. Although labor laws purportedly applied to informal sector and part-time workers, the government did not enforce the law outside the formal sector.

c. Disappearance and Abduction

Disappearance

There were reports of enforced disappearances by or on behalf of government authorities, although families later discovered the whereabouts of some of the individuals. Ousmane Toudou, a journalist and communications advisor to a former president, disappeared after responding to a CNSP summons in May. Media and his family later confirmed he was detained at the gendarmerie office in Niamey and transferred to Kollo Prison, where he remained at year's end. In August, local and foreign media outlets and press freedom organizations such as the Union of Journalists of Free Press of Africa reported Adou Serge Maturin, a journalist working for Canal 3 TV, was abducted by unidentified persons believed to be security personnel after he was suspected of meeting with a foreign military representative. According to the same sources, the government held him for two months before charging him in November

with plotting against the state. He remained in custody at year's end.

Numerous nonstate armed groups abducted civilians in conflict areas.

Prolonged Detention without Charges

The law prohibited arbitrary arrest and detention and provided for the right of any person to challenge the lawfulness of their arrest or detention in court. The government did not always observe these requirements.

The law required arrest warrants and prohibited detention without charge for more than 48 hours. An investigator could request a waiver for an additional 48 hours before charging an individual. By law, if the prosecutor received a case from an investigator without a charge filed within the initial or additional 48 hours, dismissal was required, although this was not always respected. The law allowed individuals accused of terror-related crimes to be detained without charge for 15 days, which could be extended only once for an additional 15 days. The 15-day detention period began once the suspect's case reached authorities in Niamey. Authorities in some instances held detainees longer than legally permitted. The law required authorities to notify those arrested of their right to a lawyer within 24 hours of being transferred to a detention facility. The law called for the government to provide a lawyer for indigents in civil and criminal cases, although this did not always occur. There was a functioning bail system for defendants charged with crimes carrying a sentence of less than 10 years. Widespread

ignorance of the law and an insufficient number of lawyers prevented many defendants from exercising their rights to bail and an attorney. The Nigerien Bar Association reported lawyers were frequently denied access to their clients in cases of prosecution for state security offenses or financial and economic crimes. The Bar Association and magistrates' union alleged authorities detained some suspects incommunicado.

Under the law, intelligence services could conduct sweeps without a warrant to detain suspected criminals, especially in regions and departments that were under a state of emergency. The CNSP largely respected due process when it arrested and arraigned detainees. Deposed President Mohamed Bazoum's immunity was lifted in June to face treason charges by military court. Some senior officials of the deposed government and the former ruling party remained in custody on treason or corruption charges. Based on circumstantial evidence, police and other security force members on occasion rounded up persons accused of being members of or supporters of terrorist groups, subsequently holding them for months or even years. Reports of extrajudicial arrests by intelligence services increased compared with past years.

Lengthy pretrial detention was a problem, and the length of pretrial detention frequently equaled or exceeded the maximum sentence for an alleged crime. Pretrial detainees reportedly constituted up to 80 percent of the prison population. The law provided for maximum pretrial confinement

of 48 months for terrorism offenses in which the prison sentence could be a minimum of 10 years, or 24 months for less serious offenses. According to government statistics, approximately 80 percent of prisoners facing terrorism charges were in pretrial detention, and authorities held many beyond the 24- or 48-month maximum term. In nonterrorism cases, civil society activists and members of opposition political parties were often subjected to abuse of their due process rights, including prolonged pretrial detention to allow prosecutors time to assemble evidence. Reports indicated judicial inefficiency, limited investigative capacity, and staff shortages contributed to lengthy pretrial detention periods.

d. Violations in Religious Freedom

See the Department of State's annual *International Religious Freedom Report* at <https://www.state.gov/religiousfreedomreport/>.

e. Trafficking in Persons

See the Department of State's annual *Trafficking in Persons Report* at <https://www.state.gov/trafficking-in-persons-report/>.

Section 3. Security of the Person

a. Torture and Cruel, Inhuman, or Degrading Treatment or

Punishment

The dissolved constitution and law prohibited such practices, and there were no credible reports government officials employed them.

In contrast with previous years, when impunity was rampant among army and police members due to a lack of effective oversight of military investigative and prosecutorial processes, observers claimed impunity was not a significant problem during the year.

The law prohibited female genital mutilation/cutting of girls and women. The government did not enforce the law effectively due to strong cultural norms. The most recent available data – a 2012 *Demographic and Health Survey* and UNICEF's *Multiple Indicator Cluster Surveys*, combined with data from the 2017 UN *World Population Prospects* – estimated the prevalence of the practice was 8.5 percent among girls and women.

b. Protection of Children

Child Labor

See the Department of Labor's *Findings on the Worst Forms of Child Labor* at <https://www.dol.gov/agencies/ilab/resources/reports/child-labor/findings>.

Child Marriage

By law a girl age 15 deemed to be “sufficiently mature” could be married.

The government did not enforce the law effectively. Some rural families entered into marriage agreements under which they sent girls age 12 or even younger to their husband's families to be under the "supervision" of their mothers-in-law. According to UNICEF, 76 percent of girls married by age 18 and 28 percent of girls married by age 15.

The law prohibited *wahaya*, a practice whereby some men were able to buy or to be gifted with a "fifth wife." These unofficial wives (Islam allowed a maximum of four wives) were usually the daughters of hereditary slavery victims, often sold at ages seven to 12. They performed manual labor for the household and were compelled to provide sexual services. This practice was concentrated in rural areas of Tahoua and Tillaberi Regions, and no statistics on its practice were available. In 2020, the High Court reaffirmed the illegality of *wahaya*. Enforcement of the law, however, was ineffective, particularly in the area where the practice was prevalent, and there were no reported prosecutions for this offense since 2019. In September, the domestic nongovernmental organizations (NGOs) Timidria and the Nigerien Association for the Defense of Human Rights signed a memorandum of understanding with the Ministry of Justice to combat trafficking in persons and slavery practices in the country.

c. Protection to Refugees

The government cooperated with the Office of the UN High Commissioner

for Refugees and civil society NGOs in providing protection and assistance to refugees, returning refugees, or asylum seekers, as well as other persons of concern.

Provision of First Asylum

The law provided for the granting of asylum or refugee status, and the government had a system for providing protection to refugees. Asylum seekers meeting refugee status determination eligibility were granted refugee status either on an individual or prima facie basis. Asylum seekers fleeing armed conflict in northern Mali and northern Nigeria were recognized prima facie as refugees, but all other asylum seekers were subject to an individualized asylum procedure. Gaps in the individual asylum procedure persisted, mainly in Agadez and Niamey, with significant waiting periods for applicants to receive notification of determination decisions.

d. Acts of Antisemitism and Antisemitic Incitement

There was no significant Jewish community, and there were no known reports of antisemitic incidents.